



**Woolworths – Supermarket Site in Homestead Rd,
Orchard Hills, NSW**

MN - 40034

Phase 1 Determination

Acquisition may be put into effect

8 October 2026

1. Determination and statement of reasons

Notified acquisition	Woolworths Group Limited (Woolworths), via its subsidiary, Fabcot Pty Ltd (Fabcot), proposes to acquire a freehold interest in 158-162 Homestead Road, Orchard Hills, NSW (the Target Site) to establish a new neighbourhood centre, which would include a Woolworths supermarket which is anticipated to open in July 2033 (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	Woolworths Group Limited is an Australian public company (ASX: WOW) that primarily: - operates supermarkets nationwide as Woolworths or Woolworths Metro, and - purchases or leases land through its wholly owned subsidiary, Fabcot Pty Ltd. The vendors of the site are private individuals. The Target Site is located in Orchard Hills, NSW, approximately 49km west of the Sydney CBD and approximately 10km south-east of Penrith. The Target Site is currently a residential address. The New South Wales Government has exhibited proposals for rezoning the Orchard Hills area with finalisation of the proposal anticipated in late 2026. While the Orchard Hills area is currently semi-rural it is located within a greenfield growth corridor of Sydney. It is projected to experience substantial population growth and development over the medium to long term.
Relationship	The freehold interest is an input to Woolworths' existing supermarket operations, which would facilitate Woolworths establishing the new supermarket within the new neighbourhood centre.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, other information provided by the parties, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have

	the effect of substantially lessening competition in any market. In reaching its decision, based on the material before it, and noting the uncertainty about future outcomes given the long-term horizons before supermarkets will likely be developed in the Orchard Hills area, the ACCC makes the following findings: • The Target Site is not currently used for grocery retailing. • Woolworths does not currently operate a supermarket located within the Orchard Hills area. • Woolworths is likely to face competition from existing, and likely future, rival supermarket operators as the Target Site is located in a major growth corridor with: ○ alternative retail sites that are likely to be available and appropriate for rival supermarket operators, and ○ substantial projected population growth. • Woolworths will likely have some incentive to include a differentiated supermarket operator at the Target Site to maximise the value of the neighbourhood centre.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act